

Jai Maa Vaishno Ice Factory v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 27 September 2024 · 2024:AHC:158641-DB · WRIT - C No. 31691 of 2024 · **Writ disposed; Executive Engineer to decide clause 6.5 application in four weeks.**

HEADNOTE

Writ against a July 2024 electricity bill of Rs.1,28,085 disposed of without examining the demand. The Executive Engineer is to decide the consumer's already-filed application under clause 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks of communication of the order with a photocopy of the application.

FACTUAL SUMMARY

Jai Maa Vaishno Ice Factory, a consumer of Paschimanchal Vidyut Vitran Nigam Ltd., was served an electricity bill in July 2024 demanding Rs.1,28,085. The factory filed a writ challenging the correctness of that bill. The licensee told the Court that an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005 was the efficacious remedy. Counsel for the factory stated that an application had already been filed before the concerned Executive Engineer and asked that it be decided. The licensee raised no objection to that request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending objection before Executive Engineer

HOLDING

Where the consumer has already applied to the Executive Engineer against a disputed electricity bill, and the licensee invokes clause 6.5 of the U.P. Electricity Supply Code, 2005 as the efficacious remedy and does not oppose a direction to decide that application, the writ is disposed of without adjudicating the bill, by directing the Executive Engineer to decide the application within four weeks of communication of the order along with a photocopy of the application. ¶ 2-5

PRINCIPLE TAGS

clause-6.5-pending-representation-to-be-decided The factory had already moved the Executive Engineer against the July 2024 bill. The writ was disposed of with a direction to decide that application within four weeks of communication of the order together with a photocopy of the application. ¶ 3-5

6.5-pending-complaint-writ-remitted On the licensee's plea that clause 6.5 was the efficacious remedy, and with no opposition to a decision on the pending application, the Court remitted the billing dispute and did not examine the demand of Rs.1,28,085. ¶ 2-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE JULY 2024 ELECTRICITY BILL OF RS.1,28,085 IS CORRECT

Left to the Executive Engineer on the application already filed under clause 6.5. ¶ 1